

Ram Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 February 2020 · WRIT-C No. 4708 of 2020 · **Writ disposed; relegated to Executive Engineer under Clause 6.5 with two-month stay of recovery.**

HEADNOTE

A writ challenging a recovery citation of Rs.70,030, in which the petitioner denied being a consumer, was disposed of by directing a detailed representation to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law within two months, with coercive action on the citation stayed for that period.

FACTUAL SUMMARY

Ram Kumar petitioned the Allahabad High Court against a recovery citation dated 14 October 2019 for Rs.70,030, asserting that he was not even a consumer of electricity under the Electricity Act. Counsel for the distribution licensee submitted that the controversy concerned the amount of the bill and could be examined by the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — representation to Executive Engineer

HOLDING

Where a writ challenges a recovery citation and the licensee characterises the controversy as a dispute about the amount of the bill, the High Court will relegate the petitioner to a detailed representation before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law within two months, and will stay coercive action on the citation for that period. ¶ 1

PRINCIPLE TAGS

6.5-representation-as-appropriate-remedy The Court treated a recovery-citation dispute over bill amount as a matter for representation to the Executive Engineer under Clause 6.5 rather than decision on the writ. ¶ 1

clause-6.5-alternate-remedy The writ was disposed of by directing a Clause 6.5 representation, without a merits grant or refusal on the demand. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The submission that the bill-amount dispute can be dealt with by the Executive Engineer under Clause 6.5 was adopted as the disposal path. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS A CONSUMER OF ELECTRICITY UNDER THE ELECTRICITY ACT

The petitioner's denial of consumer status was recorded but not adjudicated. ¶ 1

NOT DECIDED — CORRECTNESS OF THE RECOVERY CITATION DATED 14.10.2019 FOR RS.70,030

Left to the Executive Engineer under Clause 6.5. ¶ 1